

## 25CHCV01668 25CHCV01668

County: los-angeles

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Hearing date: 2026-06-25

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Case Number: 25CHCV01668 Hearing Date: June 25, 2026 Dept: F43

Dept. F43

Hearing Date: 06-25-26

Case # 25CHCV01668, Kreps v. Classic

Club Service, Inc., et al.

Trial Date: 07-24-28

MOTION TO DEEM

REQUESTS FOR ADMISSION ADMITTED

MOVING PARTY: Plaintiff Rodney Kreps

RESPONDING PARTIES: Defendants Classic Club Services, Inc. and

Francisco Javier Flores

RELIEF REQUESTED

Order deeming plaintiff's first set of requests for admission to defendant Francisco Javier Flores as true and admitted and imposing \$1,310 in monetary sanctions against defendant Flores.

RULING: Motion is granted. Plaintiff is awarded \$1,310 in monetary sanctions.

SUMMARY OF ACTION

On May 13, 2025, plaintiff Rodney Kreps filed this personal injury action against defendants Classic Club Service, Inc., individually and as dba Classic Towing (Classic Club), and Francisco Javier Flores (Flores), asserting motor vehicle and negligence causes of action. Plaintiff alleges he suffered injuries in an accident that occurred on July 25, 2023 when Flores, while acting within the course and scope of his employment with Classic Club, negligently operated his vehicle and collided with Plaintiff's motorcycle. Flores filed and served an answer on August 11, 2025. Classic Club filed and served an answer on August 19, 2025.

On August 22, 2025, Plaintiff electronically served defendant Flores with his first set of requests for admission. (Declaration of John P. Rosenberg ¶ 2, Exh. 1.) Responses were due September 23, 2025. Flores did not serve timely responses.

On January 2, 2026, defense counsel served Flores's responses. (Rosenberg Decl. ¶ 3, Exh. 2.) Each response is virtually identical, raising objections and stating "Responding Party is presently unable to provide a verified substantive response. Counsel will continue efforts to contact Responding Party and will supplement if and when verification becomes available."

On April 20, 2026, Plaintiff filed the instant motion to deem the requests for admission admitted and to impose \$1,310 in monetary sanctions against defendant Flores. Defendant Flores's counsel filed a late opposition on June 18, 2026, five court days late.[1] In turn, Plaintiff filed a late reply on June 22, 2026. According to defense counsel, between November 2025 and January 2, 2026, plaintiff's counsel agreed to extend the deadline for verifications. The opposition is silent concerning communications between September 23, 2025 and November of 2025 and fails to explain why the opposition was filed late. As such, the court does not consider the contents of defendant Flores's opposition.

## ANALYSIS

### A. Deeming Requests for Admissions Admitted

When a responding party fails to timely serve answers to requests for admission, the demanding party may move for an order that “the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280, subd. (b).) The demanding party must serve the motion within 45 days after service of verified responses in question, or any verified supplemental responses, or the demanding party waives its right to compel further responses. (Code Civ. Proc., § 2033.290, subd. (c).) Responses to requests for admissions are due 30 days from the date the requests were served on the responding party. (Code Civ. Proc., § 2033.250, subd. (a).) Failure to respond within 30 days or a deadline set by the parties waives any objection, including those based on privilege or work product protection. (Code Civ. Proc § 2033.280, subd. (a).)

The moving papers demonstrate Plaintiff properly served his requests for admission and that defendant Flores’s counsel electronically served responses on January 2, 2026. The response to each request was nearly identical:

Responding Party incorporates the General Objection Based on Unavailability / Inability to Verify and the General Objections above as though fully set forth herein.

Objection. Calls for a verified response; Responding Party is unavailable and counsel cannot obtain verification. Further objection that it calls for a legal conclusion and/or expert opinion as to causation, is vague and ambiguous as to [concerning various terms], and assumes facts not established.

Subject to and without waiving the foregoing objections, Responding Party is presently unable to provide a verified substantive response. Counsel will continue efforts to contact Responding Party and will supplement if and when verification becomes available.

(Rosenberg Decl., Exh. 2.) The responses were only signed by defense counsel. (Id., Exh. 2 at p. 9.)

“The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.” (Code Civ. Proc., § 2033.240, subd. (a); see also *Food 4 Less Supermarkets, Inc. v. Superior Court* (1995) 40 Cal.App.4th 651, 657.)

Thus, defense counsel's signature is sufficient to verify the objections in the responses. However, the “Calls for verified response,” the “Responding Party is unavailable and counsel cannot obtain verification,” and the “Counsel will continue efforts to contact Responding Party and will supplement if and when verification becomes available” statements are substantive responses that do not comply with Code of Civil Procedure section 2033.280.

The responding party must answer each request for admission separately and each answer must contain an admission, denial, or a statement claiming an inability to admit or deny. (Code Civ. Proc., § 2033.220, subd. (b)(1)-(3).) If the responding party gives lack of information or knowledge as a reason for failure to admit all or part of a request for admission, the responding party must state in the answer that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).) The responding party has a reasonable duty to investigate the facts before answering items that fall outside the party's personal knowledge. (*Bloxham v. Saldinger* (2014) 228 Cal.App.4th 729, 752.)

Here, defense counsel states an inability to respond and verify based on failed efforts to locate Flores. Counsel does not state a lack of information, lack of knowledge, or that a reasonable inquiry was made about the necessary information as the reason for the failure to admit or deny. Thus, the substantive portion of the responses fail because they lack verification by defendant Flores.

As for defense counsel's other objections, the court finds that each objection lacks merit. (Rosenberg Decl., Exh. 2 at pp. 1-3 [vague, ambiguous, overbroad, speculation, assumes facts not established, compound and conjunctive, seeking information protected by attorney-client privilege, seeking admissions concerning matters equally available to Plaintiff, misstate or assume incorrect date of loss, and calls for a legal

conclusion].)

First, the court finds that each request is straightforward in asking Flores whether he admits certain facts or legal conclusions as to Plaintiff's allegations concerning the incident. The requests are not compound or conjunctive as they ask Flores to admit or deny a single issue, e.g., admit that Plaintiff sustained bodily injuries as a result of the incident. The "calls for legal conclusion" objection also lacks merit. "Requests for admission are not restricted to facts or documents, but apply to conclusions, opinions, and even legal questions." (City of Glendale v. Marcus Cable Associates, LLC (2015) 235 Cal.App.4th 344, 353; see also Burke v. Superior Court of Sacramento County (1969) 71 Cal.2d 276, 282.) A request for admission is "a dispute-resolution device that eliminates the time and expense of formal proof at trial." (City of Glendale, supra, 235 Cal.App.4th at pp. 353-354.) As for the general attorney-client privilege objection, neither defendant Flores nor his counsel provide sufficient facts for the court to determine whether the requests for admission seek information protected by attorney-client privilege.

Because defendant Flores's responses are noncompliant, unverified, and contain meritless objections, the responses are the equivalent of no responses. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404; Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

Therefore, the court grants Plaintiff's motion to deem the matters in his first set of requests for admission to defendant Francisco Javier Flores as true and admitted.

## B. Sanctions

Plaintiff asks the court to impose \$1,310 in monetary sanctions against defendant Francisco Javier Flores. (Rosenberg Decl. ¶ 6.)

The court must impose sanctions against the party or attorney, or both, whose failure to serve timely responses led to a motion to deem requests for admissions admitted, unless the court finds that the responding party served code-compliant proposed responses to the requests

before the motion hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff's counsel, John P. Rosenberg, charges \$500 per hour. (Rosenberg Decl. ¶ 6.) The sanctions request seeks (1) 1.5 hours preparing the motion—\$750, (2) 0.5 hours preparing a reply—\$250, (3) 0.5 hours for the hearing appearance—\$250, and (4) a \$60 filing fee.

After reviewing the moving papers, the court finds the hourly rate and the time requested is reasonable.

Therefore, the court grants Plaintiff's request for \$1,310 in monetary sanctions.

#### CONCLUSION and ORDER

The court grants plaintiff Rodney Kreps's motion to deem the matters in his first set of requests for admission served on defendant Francisco Javier Flores on August 22, 2025, as true and admitted.

The court awards Plaintiff \$1,310 in monetary sanctions. Defendant Francisco Javier Flores is ordered to pay Plaintiff's counsel within thirty (30) days of this order.

Plaintiff Rodney Kreps to give notice.

[1] Oppositions must be filed and served no later than nine (9) court days before the hearing date. (Code Civ. Proc., § 1005, subd. (b).)